

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA**

**COLONIAL MANOR MHC
HOLDINGS, LLC,**

Plaintiff/Counter-Defendant,

vs.

CASE NO.: 2021-CA-4553

LORI SKIPPER,

**Defendant/Counter-Plaintiff/
Third-Party Plaintiff,**

vs.

**COLONIAL MANOR MHC
HOLDINGS, LLC,**

Plaintiff/Counter-Defendant,

and

**CHERYL PEAKE, in her personal and separate
capacity, and JILL WRIGHT, in her personal
and separate capacity,**

Third-Party Defendants.

_____/

**PEAKE'S MOTION TO QUASH PROCESS AND SERVICE, OR IN THE
ALTERNATIVE, MOTION TO DISMISS FOR LACK OF PERSONAL JURISDICTION
AND FAILURE TO STATE A CAUSE OF ACTION**

Pursuant to Florida Rule of Civil Procedure 1.140, Third-Party Defendant, Cheryl Peake ("Peake"), moves to quash Defendant/Counter-Plaintiff/Third-Party Plaintiff, Lori Skipper's ("Defendant" or "Skipper") attempted service and process and moves to dismiss for lack of personal jurisdiction. In the alternative, Ms. Peake requests dismissal of Defendant's Amended Counter Complaint for its failure to state a claim. In support, Ms. Peake states:

1. On November 4, 2021, Colonial Manor MHC Holdings, LLC (“Colonial Manor”) initiated the instant action by filing a three-count Complaint against Defendant as a result of Defendant’s breach of her Employment Agreement with Colonial Manor. Ms. Peake was not a named party to the Complaint.

2. In response to Colonial Manor’s Complaint, Defendant filed a Counterclaim on November 23, 2021. Defendant subsequently filed an Amended Counterclaim on December 27, 2021. Neither of Defendant’s Counterclaims named Ms. Peake as a party.

3. On or about March 28, 2022, Defendant filed a second amended counterclaim titled “Amended Counter Complaint” following the Court’s March 21, 2022 Order Adopting and Approving Magistrate’s Report and Recommendation that dismissed all counts of Defendant’s Amended Counterclaim with leave to file an amended counterclaim.

4. Defendant’s amended pleading now names Ms. Peake as a “Cross Complaint Defendant” in her personal capacity.

5. On or about March 30, 2022, Defendant purported to serve Ms. Peake with the Amended Counter Complaint and a document entitled “Summons” that was not issued by the Manatee County Clerk of Court or a judge.

6. Defendant’s attempted process is defective because the “Summons” was not issued by the Manatee County Clerk of Court, or a judge, in violation of Florida Rule of Civil Procedure 1.070. Fla. R. Civ. P. 1.070(a); *see also Vaughn v. Wells Fargo Bank, N.A.*, 153 So. 3d 969 (Fla. 5th DCA 2015) (reversing denial of motion to quash service where the summons did not contain the required seal affixed to the original document); *Martinez v. Deutsche Bank Nat’l Trust Co.*, No. 5:11-cv-580-Oc-10TBS, 2012 WL 1623660 (M.D. Fla. Jan. 19, 2012).

7. Defendant's attempted service is further defective because it was completed by an uncertified process server contrary to the Twelfth Judicial Circuit Court's Administrative Order 2015-24.2. *In re* New Procedures for the Appointment of Certified Process Servers, Fla. Admin. Order 2015-24.2 (Dec. 30, 2015).

8. George Yeske – Defendant's friend – purported to serve the Amended Counter Complaint and "Summons" on Ms. Peake by marching up to Ms. Peake and announcing "You have been duly served!" but he is not a certified process server or otherwise appointed by the court to act as a process server.¹ *See attached Exhibit A*, Defendant's Summons.

9. Without effective process or service, it is clear that this Court lacks personal jurisdiction over Ms. Peake. *Sierra v. U.S. Bank Trust, N.A., et al.*, 299 So. 3d 402, 403 (Fla. 4th DCA 2020) ("Proper service of process is indispensable for the court to obtain personal jurisdiction over a defendant..."). As a result, Ms. Peake requests that the Court quash Defendant's service, quash the attempted process, and dismiss this case for lack of personal jurisdiction.

10. Even if one were to overlook concerns with service, process, and jurisdiction, the underlying attempted claim against Ms. Peake also fails to state a cause of action. Thus, in the alternative, Ms. Peake moves to dismiss the attempted third-party complaint for its failure to state a cause of action. In that regard, Ms. Peake adopts the arguments set forth in full in Colonial Manor's Motion to Dismiss Defendant's Amended Counter Complaint filed on April 19, 2022 to demonstrate that Defendant's attempted claim simply fails.

¹ In fact, Mr. Yeske is also not licensed to practice law in Florida, though Defendant Skipper's lengthy filings in this case continue to suggest that she is receiving assistance from him.

WHEREFORE, Third-Party Defendant Cheryl Peake respectfully requests this Court to quash Defendant's service, quash the attempted process, dismiss this case for lack of personal jurisdiction, or, alternatively, dismiss for failure to state a cause of action as stated in Colonial Manor's Motion to Dismiss Defendant's Amended Counter Complaint and grant such further relief as is just and proper.

/s/ Jordann Wilhelm
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*Counsel for Third-Party Defendant,
Cheryl Peake*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing document was served via U.S. mail on this 19th day of April, 2022, to Defendant, Lori Skipper, at 900 9th Ave. E., Lot 211, Palmetto, Florida 34221.

/s/ Jordann Wilhelm
JORDANN WILHELM